

CONSOLIDATED PETITION TO SEAL MULTIPLE CRIMINAL RECORDS (BMC AMENDED
STANDING ORDER NO. 1-09)

USE THIS CONSOLIDATED PETITION ONLY IF you are asking to seal THREE OR MORE criminal records from TWO OR MORE divisions of the Boston Municipal Court Department. Below that threshold, the ordinary judicial sealing route applies, with the statewide form filed once per case. This petition SUPPLEMENTS the statewide per-case form in the BMC; it does not replace it.

COMMONWEALTH OF MASSACHUSETTS
BOSTON MUNICIPAL COURT DEPARTMENT

..... DIVISION

(THE DIVISION THE STANDING ORDER'S VENUE RULE IDENTIFIES - the division in whose territorial jurisdiction you live or, if you no longer live in BMC territory, the division your most recent eligible record is from; the instructions page walks the rule)

IN THE MATTER OF THE PETITION OF MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD
TO SEAL MULTIPLE CRIMINAL RECORDS

CONSOLIDATED PETITION TO SEAL MULTIPLE CRIMINAL RECORDS UNDER G.L. c. 276, Sec.
100C AND BMC AMENDED STANDING ORDER No. 1-09

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, petitions under G.L. c. 276, Sec. 100C and Boston Municipal Court Department Amended Standing Order No. 1-09 to seal the criminal records listed below, each of which is a Boston Municipal Court Department record that ended in a dismissal or a nolle prosequi.

2. The records to be sealed - every one listed with its BMC division, its docket number, and how it ended, copied from the petitioner's own CORI and court paperwork (three or more records from two or more divisions are required; continue on an attached sheet if needed):

Record 1 - division, docket number, disposition:

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Record 2 - division, docket number, disposition:

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Record 3 - division, docket number, disposition:

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Further records, if any - division, docket number, disposition for each:

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3. Good cause exists to seal the listed records under the standard of Commonwealth v. Pon, 469 Mass. 296 (2014). The petitioner's own statement of the specific disadvantages these records have caused, and of

what the petitioner has done since the cases ended, follows (these lines are yours alone, written against the questions the instructions page sets out; nothing on them is written for you):

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4. The petitioner understands that the judge may request additional information or documents about the listed cases from the Clerk-Magistrate or the Probation Department, and that the court may hold a preliminary hearing or proceed to one final hearing. The petitioner will send a copy of this petition to the Suffolk County District Attorney at least 30 days before the final hearing unless that office waives the full notice period; court notice does not replace this obligation.

5. The petitioner asks that each record listed above be sealed under G.L. c. 276, Sec. 100C.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 1188 Commonwealth Harbourside Crossing Avenue, Apartment 14B, Dorchester, Massachusetts 02124-2214

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Route: obligation:track-only:MA:ma-bmc-multi

THRESHOLD, VENUE AND WHAT FOLLOWS FILING

For: Maria-Alejandra O'Shaughnessy-Whitfield

WORDS FIRST. In Massachusetts, SEALING and EXPUNGEMENT are different remedies and are never interchangeable: sealing does not destroy the record; expungement does. This packet is about sealing only.

THE THRESHOLD. This consolidated route exists only for THREE OR MORE criminal records from TWO OR MORE divisions of the Boston Municipal Court Department, and only for BMC records - it does not reach District Court, Juvenile Court or Superior Court records. Below the threshold, or for non-BMC records, the ordinary judicial sealing route applies, with the statewide form filed once per case. Count your qualifying records against your own CORI before anything is filed.

WHAT QUALIFIES. Only dismissal or nolle prosequi records fall within this consolidated procedure under the second paragraph of Sec. 100C. No waiting period applies. A not-guilty finding or a finding of no probable cause requires the appropriate separate Sec. 100C process; this consolidation limit does not decide whether that record can be sealed.

THE VENUE RULE. The Standing Order keys venue to residence: file in the BMC division in whose territorial jurisdiction you live. If you no longer live in BMC territory, file in the division your most recent eligible record is from. The instructions on the petition's caption line follow this rule.

SUPPLEMENTS, NOT REPLACES. In the BMC, the consolidated petition supplements rather than replaces the statewide per-case sealing form, which is Trial Court form TC0057 (2/24), Petition to Seal Criminal Records for Nolle Prosequi or Dismissal - the per-case form for a dismissal or a nolle prosequi, which prints "Use a separate form for each case" on its own face and is not included in this packet. Ask the clerk of the venue division whether that division wants TC0057 filed alongside this petition and how many, and whether the division uses any form of its own for the consolidated procedure - whether the BMC publishes one is an open question this packet does not decide. Ask before you file; do not assume this petition alone is the whole filing.

YOUR CORI FIRST. Request your own CORI from the Massachusetts Department of Criminal Justice Information Services before completing the petition. Every record you list - division, docket number, disposition - is copied from it and from your court paperwork, never from memory. This packet never collects, inspects or authenticates your CORI.

THE GOOD-CAUSE NARRATIVE. Commonwealth v. Pon sets the standard, and the narrative is yours to write. Answer, in your own words, on the petition's dotted lines:

- What specific problems have these records caused you - in work, housing, licensing or elsewhere?
- What have you done since the cases ended?

NOTICE AND HEARINGS. Send a copy of this petition to the Suffolk County District Attorney at least 30 days before the final hearing unless that office waives the full period. Keep proof of what you sent and when; court notice to the Commonwealth does not replace your separate obligation. A preliminary

hearing is discretionary: the court may proceed to a single final hearing. Follow the hearing notice. If a hearing is set or the judge asks for more information, take the papers to a lawyer or court service center; do not miss the notice deadline while seeking help.

FEES. There is no filing fee to request sealing. No filing-fee waiver application is needed for this no-fee request. This does not promise that obtaining your records or other third-party services is free.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- the three-record, two-division threshold is not met - the ordinary route with one form per case is yours instead;
- any record is outside the Boston Municipal Court Department;
- the judge requests additional information about the listed cases;
- a hearing is set.

Route: obligation:track-only:MA:ma-bmc-multi